

****28.04.2025****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed, in April 2025, an investigation into the operator Xiting ROM SRL and found a violation of the provisions of Article 12 paragraphs (3) - (4) in conjunction with Article 15 paragraphs (1) - (3) of Regulation (EU) 2016/679. As such, the operator was sanctioned with a fine of 4,977 lei (equivalent to 1,000 EURO).

The investigation was initiated following a complaint from an individual who reported that the operator did not respect their right of access to their personal data.

During the investigation, it was found that the operator Xiting ROM S.R.L. did not provide the complainant with a timely written response that was appropriate and complete to their request for information regarding the processing of their personal data, as well as an electronic copy of that data. As such, it was determined that the provisions of Article 12 paragraphs (3) - (4) in conjunction with Article 15 paragraphs (1) - (3) of Regulation (EU) 679/2016 were violated, and the operator was sanctioned with a fine.

At the same time, based on the provisions of Article 58 paragraph (2) letter b) of Regulation (EU) 2016/679, the following corrective measures were ordered against the operator:

- to send a complete response to the complainant's request, to their email address, by securely communicating all documents and records containing their personal data that are still available in the operator's database, or, as the case may be, to justify the refusal to provide them, in relation to the provisions of Article 12 paragraph (4) and Article 15 paragraphs (3) - (4) of the GDPR;
- to ensure compliance with the GDPR in the operations of personal data processing, by adopting the necessary technical and organizational measures, including with regard to the appropriate training of the designated personnel for this purpose, so that the operator is able to analyze, correctly resolve, and appropriately respond to requests from data subjects exercising their rights, within the deadlines and according to the conditions provided by Articles 12-23 of the GDPR.

****Legal and Communication Department****

****N.A.S.P.D.C.P****